

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

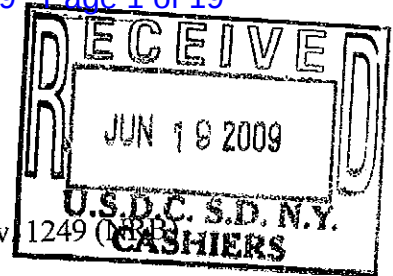
-----X
RAPHAEL JEFFERSON and JUAN SANTOS REYES,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, RUBEN ALVAREZ, and JODI
BROWN,

Defendants.
-----X



AMENDED COMPLAINT

PLAINTIFFS DEMAND
A TRIAL BY JURY

RAPHAEL JEFFERSON and JUAN SANTOS REYES ("Plaintiffs"), by their attorneys,
SCHULMAN, BLITZ & WILLIAMSON, LLP, complaining of the defendants herein, respectfully
shows to this Court, and alleges as follows:

NATURE OF THIS ACTION

1. This is an action for monetary damages (compensatory and punitive) against
defendants, THE CITY OF NEW YORK (hereinafter referred to as "CITY"), THE NEW YORK
CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD"), NYPD Police Officer
RUBEN ALVAREZ, (hereinafter referred to as "ALVAREZ") and NYPD Police Officer JODI
BROWN, (hereinafter referred to as "BROWN"), arising out of the false arrest, excessive force,
assault, battery, unlawful detention, negligent and intentional infliction of emotional distress and
violation of the civil rights of the plaintiffs, thereby causing the plaintiffs to sustain personal injuries
and other damages.

2. It is alleged that on June 20, 2008, at approximately 8:24 p.m. and
thereafter, at or near the intersection of East 167th Street and Washington Avenue, Bronx, New
York, officers ALVAREZ and BROWN, of the NYPD, and as agents, servants and/or employees

of defendant CITY, acting in concert, under color of state laws, intentionally and willfully subjected plaintiffs to, *inter alia*, false arrest, excessive force, assault, battery, unlawful detention, negligent and intentional infliction of emotional distress and violation of the civil rights of the plaintiffs, thereby causing the plaintiffs to sustain personal injuries and other damages.

JURISDICTION AND VENUE

3. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §§1331, 1343 and 1367(a), in that it alleges claims for relief arising under 42 U.S.C. 1983, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and under the Constitution, statutes and common law of the State of New York.

4. Additionally, the Court has pendant jurisdiction, pendant party jurisdiction and supplementary jurisdiction of the state and common law claims asserted herein pursuant to 28 U.S.C. §1367 because such claims form part of the same case or controversy over which this court has original subject matter jurisdiction.

5. Venue is laid within the United States District Court for the Southern District of New York and is proper pursuant 28 U.S.C. §1391 because a substantial part of the events or omissions giving rise to the claim occurred within the boundaries of this district or, in the alternative, the defendant CITY OF NEW YORK is subject to personal jurisdiction in this district.

THE PARTIES

6. At all times hereinafter mentioned, plaintiffs were and are citizens of the United States and at all times relevant hereto resided in the County, City and State of New York.

7. At all times relevant and material herein, the defendant CITY was and still is a domestic municipal corporation and a subdivision of the State of New York, duly organized and existing pursuant to the Constitution and under and by virtue of the Laws of the State of New York.

8. At all times relevant and material herein, the defendant NYPD was a subdivision, department or agency of defendant CITY.

9. At all times relevant and material herein, the defendant ALVAREZ was an employee of defendant CITY, duly appointed and acting as a police officer in the NYPD and was an agent, servant and/or employee of defendant CITY, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer.

10. At all times relevant and material herein, the defendant ALVAREZ was a supervisory employee of, and an agent, servant and/or employee of defendant CITY, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer, and otherwise performed and engaged in conduct incidental to the performance of his functions in the course of his duties. He is sued individually and in his supervisory capacity.

11. At all times relevant and material herein, the defendant BROWN was an employee of defendant CITY, duly appointed and acting as a police officer in the NYPD and was an agent, servant and/or employee of defendant CITY, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer.

12. At all times relevant and material herein, the defendant BROWN was a supervisory employee of, and an agent, servant and/or employee of defendant CITY, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer, and otherwise performed and engaged in conduct incidental to the performance of his functions in the course of his duties. He is sued individually and in his supervisory capacity.

13. At all times mentioned herein, the individual defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of defendant CITY and the State of New York.

NOTICE OF CLAIM

14. Within 90 days following the termination of the prosecution of the plaintiffs arising from this incident, plaintiffs served written Notices of Claim on defendant CITY. This matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

15. At all times relevant and material herein, the defendant CITY operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

16. At all times relevant and material herein, the defendants ALVAREZ and BROWN were each employees of defendants CITY and NYPD.

17. At all times relevant and material herein, the defendants ALVAREZ and BROWN were personnel of defendants CITY and NYPD.

18. That at all times hereinafter mentioned and upon information and belief, the defendant CITY employed and supervised the defendants ALVAREZ and BROWN .

19. Upon information and belief, the defendants ALVAREZ and BROWN were graduates of the Police Academy of the City of New York.

20. At all times relevant hereto, the defendant CITY had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers, ALVAREZ and BROWN, to conform their conduct to a standard for the protection of individuals, such as plaintiffs, against the unreasonable risk of harm by conducting

themselves in such a manner so as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiffs herein.

21. In addition, at all times relevant hereto, the defendant CITY had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendant officers, ALVAREZ and BROWN, in the protections of the rights of plaintiffs under the Constitution and the Bill of Rights.

22. At all times hereinafter mentioned, upon information and belief, the defendants, ALVAREZ and BROWN, were acting in their capacities as employees, agents or servants of the defendant CITY.

23. At all times hereinafter mentioned the defendants ALVAREZ and BROWN were acting under color of law.

24. At all times hereinafter mentioned, the defendants' acts constituted state action.

25. At approximately 8:24 p.m., on or about June 20, 2008, plaintiffs were at or near the intersection of East 167th Street and Washington Avenue, in the County of Bronx, City and State of New York.

26. On or about June 20, 2008, the defendants ALVAREZ and BROWN were on duty and/or acting as employees, agents or servants of the defendant CITY, and were also present at the same time and in the same place as plaintiffs, as aforesaid.

27. On or about June 20, 2008, and thereafter, the defendants ALVAREZ and BROWN, employees of defendant CITY, stopped, detained and arrested plaintiffs, without reasonable suspicion to stop or detain, and without just, reasonable, lawful or proper cause to arrest the plaintiffs.

28. Upon information and belief, at all times herein mentioned, defendants ALVAREZ and BROWN, employees of defendant CITY, with disregard for proper, lawful, appropriate, correct, and effective investigative behaviors and procedures, stopped, detained and arrested the plaintiffs when it was not right, just, lawful, proper, or necessary to do so.

29. Upon information and belief, at all times herein mentioned, defendants ALVAREZ and BROWN, employees of defendant CITY, detained, attacked, beat, battered, intimidated, kicked, threatened, menaced, chased, jumped on, pushed to the ground, thrashed the plaintiffs, and further assaulted plaintiffs, causing them to sustain severe and personal injuries.

30. In addition to the defendants' willful and intentional attack upon plaintiffs, the defendants intentionally held and restrained the plaintiffs without their consent.

31. In addition to the defendants' willful and intentional attack upon plaintiffs, the defendants falsely arrested the plaintiffs without their consent.

32. In addition to the defendants' willful and intentional attack upon plaintiffs, the defendants falsely imprisoned the plaintiffs without their consent.

33. In addition to the defendants' willful and intentional attack upon plaintiffs, the defendants committed an assault and battery against the plaintiffs without their consent.

34. Upon information and belief, at all times herein mentioned, defendants ALVAREZ and BROWN, employees of defendant CITY, used excessive force and deadly physical force upon the plaintiffs causing them to sustain severe and permanent injuries.

35. Upon information and belief, at all times herein mentioned, defendants ALVAREZ and BROWN, employees of defendant CITY, while acting in concert, maliciously and with intent to injure the plaintiffs, and without just cause or any right to do so, handcuffed, detained,

jailed and restrained the plaintiffs, against the will of the plaintiffs, thereby depriving them of their liberty.

36. Plaintiffs were then arrested and/or caused to be arrested and charged with various crimes.

37. The arrests of the plaintiffs by the individual defendants were perpetrated by the individual defendants without a warrant or other legal process and without probable cause.

38. Defendants acted maliciously and intentionally.

39. Plaintiffs were thereupon and thereafter detained and restrained of their liberty and freedom, on account of the unlawful and wrongful acts of the defendants, and was confined in various places, including the 42nd Precinct lockup, the courthouse lockup, the courtroom lockup, and other places.

40. Eventually, the plaintiffs were released from such confinement and detention.

41. Thereafter, the plaintiffs were forced to return to court on multiple occasions, over a period of about six months, appearing in public, and before the public, as defendants, people accused of criminal acts of which they were not guilty.

42. All charges against plaintiff JEFFERSON, except for resisting arrest and disorderly conduct, were subsequently dismissed or otherwise disposed of.

43. All charges against plaintiff REYES, were subsequently dismissed or otherwise disposed of.

44. All of the defendants' acts described in the preceding paragraphs were without probable or just cause, grounds or provocation, and were excessive, unreasonable, unnecessary and without any privilege or justification.

45. Upon information and belief, at all times herein mentioned, and without proof that the plaintiffs were in any way connected or related to a crime, or that any crime was, in fact, committed, and without reasonable suspicion to stop plaintiffs, and without probable cause to detain or arrest plaintiffs, defendant CITY's employees, including defendants ALVAREZ and BROWN, individually and acting in concert, knowingly, unlawfully and wrongfully fabricated charges against the plaintiffs and set these charges forth in false and fabricated criminal complaints, falsely sworn to by defendant ALVAREZ on June 21, 2008.

46. The criminal complaint and reports against plaintiff JEFFERSON were and are false and fraudulent in alleging that plaintiff JEFFERSON resisted arrest and committed disorderly conduct, and in alleging the facts therein set forth alleged to constitute those charges.

47. The criminal complaint and reports against plaintiff REYES were and are false and fraudulent in alleging that plaintiff REYES committed disorderly conduct and in alleging the facts therein set forth alleged to constitute those false charges.

48. Based upon the false criminal complaint and complaint reports prepared, upon information and belief, by the defendant employees, the Criminal Court arraigned plaintiff JEFFERSON on the above charges.

49. Based upon the false criminal complaint and complaint reports prepared, upon information and belief, by the defendant employees, the Criminal Court arraigned plaintiff REYES on the above charges.

50. By reason of the foregoing acts of the defendants, and as a direct and proximate result of the acts of the defendants, the plaintiffs suffered severe and permanent personal injuries and damages, and upon information and belief, will continue to suffer pain in the future.

51. By reason of the foregoing acts of the defendants, the plaintiffs were caused severe and intense emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same in the future.

52. By reason of the foregoing, plaintiffs were compelled to, and did necessarily, require medical attention and did necessarily pay and become liable therefore, and upon information and belief, plaintiffs will necessarily continue to incur similar expenses in the future.

53. By reason of the foregoing acts of the defendants, and as a direct and proximate result of the acts of the defendants, the plaintiffs felt grave fear and intimidation for their safety and well being by virtue of the intentional, deliberate and malicious acts of the officers including the manner in which they assaulted, battered, attacked and falsely arrested the plaintiffs.

54. By reason of the foregoing, the plaintiffs were compelled to, and did necessarily, incur legal fees and did necessarily pay and become liable therefore, and upon information and belief, plaintiffs will necessarily incur similar legal fees in the future.

55. The actions of the individual defendants violated the following clearly established and well settled federal constitutional rights of plaintiffs under the Fourth and Fourteenth Amendments to the United States Constitution, including freedom from the unreasonable search and seizure of their person and freedom from the use of excessive, unreasonable and unjustified force against a person.

ALLEGATIONS PERTAINING TO PLAINTIFFS' STATE LAW CLAIMS

56. Prior to the commencement of this action and within the time mandated by law, an Amended Notice of Claim on behalf of plaintiff JEFFERSON containing the information required by law was duly served upon the defendant CITY.

57. Prior to the commencement of this action and within the time mandated by law, an Amended Notice of Claim on behalf of plaintiff REYES containing the information required by law was duly served upon the defendant CITY.

58. More than thirty (30) days have elapsed since plaintiff JEFFERSON'S claims upon which this action is based were presented to the defendant CITY, and said defendant has neglected and/or refused to make payment or adjustment thereof.

59. More than thirty (30) days have elapsed since plaintiff REYES' claims upon which this action is based were presented to the defendant CITY, and said defendant has neglected and/or refused to make payment or adjustment thereof.

60. Defendant CITY held an examination of plaintiff JEFFERSON as was its right under the General Municipal Law on September 19, 2008.

61. Defendant CITY held an examination of plaintiff REYES as was its right under the General Municipal Law on December 18, 2008.

62. This action is commenced within one year and ninety days after both the accrual of the causes of action alleged in this complaint and the happening of the incidents and acts complained of herein.

FIRST CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. § 1983 and 42 U.S.C. §1985

63. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "62", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

64. The defendants, acting in concert and individually and under the color of law, have deprived the plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive the plaintiffs of such rights under 4th and 14th amendments and are liable to the plaintiffs under the 5th amendment, 8th amendment, 42 U.S.C. § 1983 and 42 U.S.C. §1985.

65. As a result of the foregoing, plaintiffs suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, anguish, humiliation, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

SECOND CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

ASSAULT

66. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "65", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

67. Upon approaching the plaintiffs and while in the process of handcuffing and arresting them, defendants ALVAREZ and BROWN, employees of defendant CITY, while acting in concert, made the plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

68. Said actions were excessive, unwarranted, unnecessary and violent and violated the plaintiffs rights under the United States constitution.

69. As a result of the foregoing, the plaintiffs suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional

injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

THIRD CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

BATTERY

70. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "69", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

71. Defendants ALVAREZ and BROWN, employees of defendant CITY, while acting in concert, assaulted, battered, beat, intimidated, kicked, threatened, menaced, chased, attacked, jumped on, pushed to the ground, thrashed, beat with nightsticks, punched, shoved and pushed the plaintiffs.

72. That the aforesaid conduct by defendants ALVAREZ and BROWN was without the consent of the plaintiffs.

73. That the aforesaid conduct by defendants ALVAREZ and BROWN was offensive in nature.

74. That the aforesaid conduct by defendants ALVAREZ and BROWN was intentional.

75. That the aforesaid conduct by defendants ALVAREZ and BROWN was with the intent of causing physical, emotional and/or psychological harm and/or other injuries to plaintiffs.

76. Said actions were excessive, unwarranted, unnecessary and violent and violated the plaintiffs rights under the United States Constitution.

77. As a result of the foregoing, the plaintiffs suffered injuries including but not limited

to severe and permanent physical injuries, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

FOURTH CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

78. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "77", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

79. Defendants' conduct, in assaulting, battering and falsely arresting and imprisoning the plaintiffs was extreme, outrageous, shocking and exceeded all reasonable bounds of decency.

80. Defendants' extreme and outrageous conduct was intended to cause and did cause severe emotional distress to the plaintiffs.

81. As a result of the foregoing, the plaintiffs suffered injuries including but not limited to severe and permanent physical injuries, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

FIFTH CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

82. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "81", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

83. Defendants' conduct, in assaulting, battering and falsely arresting and imprisoning the plaintiffs was careless and negligent with regard to the emotional health of plaintiffs.

84. As a result of the foregoing, the plaintiffs suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

SIXTH CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

COMMON LAW NEGLIGENCE

85. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "84", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

86. Defendants ALVAREZ and BROWN were negligent in their conduct, in causing, or allowing, the aforesaid occurrence to take place.

87. Defendants ALVAREZ and BROWN, employees of defendant CITY, while acting in concert, negligently assaulted, battered, beat, intimidated, kicked, threatened, menaced, chased, attacked, jumped on, pushed to the ground, thrashed, beat with nightsticks, punched, shoved and pushed the plaintiffs.

88. As a result of the foregoing, the plaintiffs suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY AGAINST DEFENDANTS CITY AND NYPD
COMMON LAW NEGLIGENCE

89. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "88", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

90. Defendant CITY was negligent in its operation, management, supervision and control of defendant NYPD.

91. Defendants CITY and NYPD were negligent in its hiring, training and evaluating its agents, servants and employees, including but not limited to defendants ALVAREZ and BROWN.

92. As a result of the foregoing, the plaintiffs suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

EIGHTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY AGAINST DEFENDANTS CITY AND NYPD
RESPONDEAT SUPERIOR

93. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "92", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

94. Defendants CITY and NYPD are liable for the damages suffered by the plaintiffs as a result of the conduct of its agents, servants and employees, under the doctrine of *respondeat superior*.

95. Defendants CITY and NYPD, by their agents, servants and employees, subjected the plaintiffs to false arrest, assault, battery, false imprisonment, physical, emotional and psychological injuries, embarrassment, shame and public humiliation, loss of income, medical and legal expenses.

96. As a result of the foregoing, the plaintiffs suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

NINTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY AGAINST DEFENDANTS CITY AND NYPD

VIOLATION OF CIVIL RIGHTS AFFORDED BY 42 U.S.C. § 1983 and 42 U.S.C. §1985

97. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs "1" through "96", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

98. Defendants CITY and NYPD knew or should have known of its employees', agents', and/or servants' propensity to engage in the illegal and wrongful acts detailed above.

99. Prior to June 20, 2008, defendants CITY and NYPD developed and maintained policies and/or customs exhibiting deliberate indifference to the constitutional rights of persons in the City of New York, which policies and/or customs caused the violation of the plaintiffs rights.

100. Upon information and belief, it was the policy and/or custom of defendants CITY and NYPD to improperly and inadequately investigate citizen and other complaints of police misconduct, and acts of misconduct were instead tolerated by defendants CITY and NYPD,

including, but not limited to incidents where defendants and their supervisors have in the past falsely arrested individuals without probable cause, improperly held and/or detained such individuals without probable cause, and made, and allowed other fellow police officers and others of its employees to make, false entries in official police department records, and to issue false and fraudulent criminal complaints and accusatory instruments, to cover up and hide their wrongful conduct.

101. It was the policy and/or custom of defendants CITY and NYPD to fail to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct, thereby failing to adequately discourage further constitutional violations on the part of its police officers. Defendants CITY and NYPD did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

102. As a result of the above described policies and/or customs, police officers of the NYPD believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

103. The above policies and/or customs demonstrated a deliberate indifference on the part of policymakers of the defendants CITY and NYPD to the constitutional rights of persons within the City of New York, and were the cause of the violations of the plaintiffs rights alleged herein.

104. As a result of the foregoing, the plaintiffs suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claim damages for the aforesaid injuries.

TENTH CLAIM FOR RELIEF

UNREASONABLE AND EXCESSIVE FORCE

VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. § 1983

105. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs “1” through “104”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

106. By their conduct, defendants ALVAREZ and BROWN, under color of law, deprived plaintiffs of their constitutional rights to be free from excessive and unreasonable force.

107. Plaintiffs claim compensatory and punitive damages for the injuries set forth above.

ELEVENTH CLAIM FOR RELIEF

DELAY AND DENIAL OF MEDICAL TREATMENT AND FAILURE TO PROTECT WHILE
IN CUSTODY

VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. § 1983

108. Plaintiffs repeat, reiterate and reallege each and every allegation set forth in paragraphs “1” through “107”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

109. By their conduct and under color of law, defendants ALVAREZ and BROWN deprived plaintiffs of their constitutional rights to immediate medical treatment and failed to protect them once they became prisoners, thus perpetuating and exacerbating their physical and mental pain and suffering.

WHEREFORE, plaintiffs demands judgment against the defendants, jointly and severally, for compensatory damages on each Claim for Relief, and plaintiffs demands an additional sum of punitive damages on each Claim for Relief, to be determined at the trial of this action and, in the event plaintiffs are a prevailing party, attorneys' fees, interest, costs, disbursements and such other relief as to this Court shall seem just and proper.

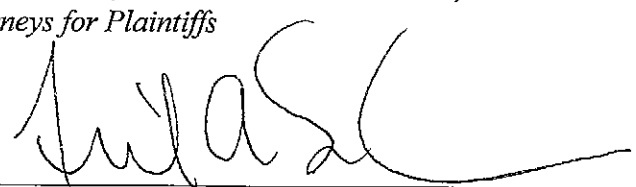
DEMAND FOR A JURY TRIAL

Plaintiffs demand a trial by jury as to all issues in the above matter.

Dated: New York, New York
June 18, 2009

Yours, etc.,

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by: 

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